

25STCV15421 25STCV15421

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 25STCV15421 Hearing Date: July 30, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

30, 2026

CASE NAME: Tara

Gill v. Monique C. Roberson

CASE NO.: 25STCV15421

MOTION

TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

for Plaintiff, Neil S. Steiner of Steiner & Libo

RESPONDING PARTY(S): Plaintiff Tara Gill

REQUESTED RELIEF:

1. An

order granting Counsel for Plaintiff leave to withdraw as counsel for Plaintiff.

TENTATIVE RULING:

1. Motion

to be relieved as counsel is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 28, 2025, Plaintiff Tara Gill (Plaintiff) filed a complaint against Defendant Monique C. Roberson (Defendant) with one cause of action for negligence. According to the complaint, on June 7, 2023, Plaintiff was at 1512 S. Fairfax Ave., Los Angeles, CA 90019 when Defendant knocked her down and injured her.

On August 1, 2025, Defendant filed an answer.

On June 8, 2026, Counsel for Plaintiff Neil S. Steiner (Counsel) filed the instant motion to be relieved as counsel. On July 17, 2026, Plaintiff filed an opposition. On July 22, 2026, Counsel filed a reply.

LEGAL STANDARD:

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code of Civ. Proc., § 284, subd. (b).) An attorney is permitted to withdraw where conflicts between the attorney and client make it unreasonable to continue the representation. (See Cal. Rules of Prof. Conduct 3-700(C)(1).) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Court 3.1362(a)), MC-052 (Declaration) (Cal. Rules of Court 3.1362(c)), and MC-053 (Proposed Order) (Cal. Rules of Court 3.1362(e)).

Further, the requisite forms must be served on the client

and all other parties who have appeared in the case.¿ (Cal. Rules of Court 3.1362(d).)¿ The court may delay effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.¿ (Cal. Rules of Court 3.1362(e).)¿¿

ANALYSIS:

Counsel contends relief is warranted because of a breakdown in the attorney-client relationship such that he is no longer able to effectively represent Plaintiff. Counsel adds that he served this motion on Plaintiff by confirming her address via email.

Plaintiff argues that Counsel's declaration is defective because it does not provide sufficient information to the court to evaluate the motion. She adds that withdrawal would cause irreparable prejudice to her absent an adequate transition period to obtain new counsel. She requests a 120-day stay.

Counsel replies that the true dispute is not whether he can withdraw but the conditions and timing under which he can do so. Counsel further replies that his declaration is sufficient and he cannot disclose more without compromising the attorney-client privilege.

Here, relief is warranted. First, Counsel complied with the requirements by providing notice to Plaintiff and completing the requisite forms pursuant to the CRC. Second, Counsel's declaration is sufficient because it identifies, without violating the attorney-client privilege, that there is a breakdown in the relationship. Third, Plaintiff will not be prejudiced because trial is set for April of 2027 which allows her plenty of time to obtain new counsel.

Accordingly, the court GRANTS Counsel's motion to be relieved.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

to be relieved as counsel is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 30, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court